

AMENDMENT NO. 1 TO CONTRACT NO. 5737
USE AGREEMENT BETWEEN
CITY OF CHEYENNE, WYOMING
AND
ZAYO GROUP, LLC
f/k/a 360NETWORKS, INC.

The following sections of Contract No. 5737 between the City of Cheyenne and Zayo Group, LLC (formerly known as 360networks, Inc.) dated September 28, 2011 are hereby amended:

1. **Section 1.** Definitions. For the purposes of this agreement, the following terms shall mean:
 - b. **Company** means Zayo Group, LLC, 360networks (USA) inc., a Nevada Corporation, a Delaware Limited Liability Company, authorized to do business in the State of Wyoming.
2. **Section 2.** Permission Granted.
 - a. The City hereby grants to the Company limited permission to install a fiber optics telecommunications cable along the public right-of-way in Cheyenne, Wyoming, ~~for a distance of approximately 24,516 linear feet. The specific area where the utility corridor will be installed is contained in the utility corridors proposed in Exhibits A and B to this agreement, and as specified in applicable as-buils.~~ The Company may install additional fiber optic telecommunications cable along public rights-of-way within the City provided that: (1) the Company obtains the prior written approval of the City Engineer pursuant to the issuance of right-of-way encroachment permits in all circumstances provided for under Chapters 12.04 and 12.12 of the Cheyenne City Code, and (2) the Company's installation of the additional fiber optic telecommunications cable complies with the terms of this agreement.
 - b. This Agreement shall have ~~a an initial~~ term of five (5) years commencing upon execution of this Amendment No. 1 (the "Amendment No. 1 Term").
3. **Section 5.** Legal Construction.

This agreement shall not be construed as a comprehensive franchise agreement. Its terms are limited to the areas and lengths shown in Exhibits A and B, and any additions thereto as permitted by the City Engineer pursuant to Section 2 of this agreement. ~~approximate 24,516 linear feet of public right-of-way. Any expansion beyond that initial fiber optics installation shall require another agreement with the City of Cheyenne.~~
4. **Section 7.** Compensation.

As consideration for ~~this~~ **the original** agreement, Company shall pay to the City two dollars and fifty cents (\$2.50) per lineal foot of conduit or related facilities in the City right-of-way **as shown in Exhibit A**, due once as-builts are completed **pursuant to Section 4 of this agreement**, and upon each anniversary date of this agreement until it expires or terminates. Company may pay the entire amount due of \$306,450.00 in one lump sum upon execution of this agreement.

As consideration for this amendment, the Company shall supply the City six (6) fibers exclusively for the City's own governmental, non-commercial use without the right of resale along the routes highlighted in Exhibit B. For the avoidance of doubt, no additional consideration shall be required for Company's construction and installation of the facilities related to Exhibit B (as specified in as-builts), for the Amendment No. 1 Term.

As consideration for any future expansions pursuant to Section 2 of the agreement, the Company shall pay to the City two dollars and fifty cents (\$2.50) per lineal foot of additional conduit or related facilities in the City right-of-way, due once as-builts are completed pursuant to Section 4 of the agreement, and upon each anniversary date of the agreement until it expires or terminates.

All other aspects of the original agreement remain unchanged and in full force and effect.

This Amendment shall be in full force and effect when executed by all parties.

Dated this _____ day of _____, 2013.

CITY OF CHEYENNE

BY:

Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer, City Clerk

Zayo Group, LLC

BY: _____

Title: _____

WITNESS:

Title: _____